

Amended Excerpts

1. Line 24 through 31:

24 employee may file an action in a court with jurisdiction under Title 78A, Judiciary and
25 Judicial Administration.

26 (2) ~~[An]~~For one year after the day on which the wages were earned, an employee may file
27 an action for a wage claim in a court ~~that~~→ **without exhausting the administrative remedies**
28 **described in Section 34-28-9 and rules made by the commission under Section**
28a **34-28-9** ←~~that~~

29 if:

30 (a) the employee's wage claim is over \$10,000;

31 (b) (i) the employee's wage claim is less than or equal to \$10,000;